



CHAPTER ii.

An Act to extend the periods limited by the Bromborough Dock Act 1923 for making and completing the dock and the other works by that Act authorised. [26th April 1928.]

A.D. 1928.

WHEREAS by the Bromborough Dock Act 1923 (hereinafter called "the Act of 1923") Lever Brothers Limited (hereinafter called "the Company") were authorised to construct the dock and the other works in the urban district of Bebington and Bromborough and county of Chester therein described :

And whereas by the Act of 1923 the time for making and completing Works Nos. 1 2 3 4 and 7 by that Act authorised and such portions of Works Nos. 5 and 6 by that Act authorised as will not be situate above the level of thirty-one feet above Liverpool Bay datum or form part of the return walls or embankments was limited to five years from the passing thereof and will expire on the thirty-first day of July nineteen hundred and twenty-eight :

And whereas by the Act of 1923 the time for making and completing the remainder of the said Works Nos. 5 and 6 was limited to ten years from the passing thereof and will expire on the thirty-first day of July nineteen hundred and thirty-three :

And whereas the contract for making and completing the said dock and certain other of the works authorised by the Act of 1923 was let by the Company on the tenth

A.D. 1928. — day of October nineteen hundred and twenty-four to a company (hereinafter called "the contracting company") registered under the Companies (Consolidation) Act 1908 and the works under the said contract (hereinafter called "the contract works") were due to be completed within a period of three years from the date of the order of the engineer of the Company to commence the contract works:

And whereas the order of the engineer of the Company to commence the contract works was given to the contracting company on the twenty-seventh day of November nineteen hundred and twenty-four:

And whereas owing to defaults and delays in the execution of the contract works it became necessary for the Company to serve notice upon the contracting company calling upon them to proceed regularly and effectively with the contract works but the contracting company continued to make default by neglecting to comply with such notice and to proceed effectively with the contract works:

And whereas the Company terminated the said contract on the nineteenth day of April nineteen hundred and twenty-six and the contracting company is in course of being wound up compulsorily:

And whereas by reason of the breach of the said contract by the contracting company and the time necessarily required for the letting of a new contract and the reorganisation of the work the progress of the construction of the dock and the other works authorised by the Act of 1923 has been much delayed and it is expedient that the periods limited as aforesaid for making and completing the same should be extended as in this Act provided:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Bromborough Dock Act, 1928.

2. Part II (Extension of time) of the Railways
Clauses Act 1863 (so far as it is applicable for the purposes
of and is not varied by or inconsistent with this Act) is
hereby incorporated with this Act.

A.D. 1928.

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Incorporation of
Part II of Rail-
ways Clauses
Act 1863.

3. In this Act—

the expression “the Company” means Lever
Brothers Limited;

the expression “the Act of 1923” means the
Bromborough Dock Act 1923.

Interpre-
tation.

4.—(1) The period limited by section 15 (Period for
completion of works) of the Act of 1923 for making and
completing Works Nos. 1 2 3 4 and 7 by that Act
authorised and such portions of Works Nos. 5 and 6
by that Act authorised as will not be situate above the
level of thirty-one feet above Liverpool Bay datum or
form part of the return walls or embankments is hereby
extended until the thirty-first day of October nineteen
hundred and thirty.

Extension
of time for
completion
of works.

(2) The period limited by the said section 15 of the
Act of 1923 for making and completing the remainder of
the said Works Nos. 5 and 6 is hereby extended until the
thirty-first day of October nineteen hundred and thirty-
five.

(3) The said section 15 of the Act of 1923 shall be
read and have effect accordingly.

5. All costs charges and expenses of and incident to
the preparing for obtaining and passing of this Act or
otherwise in relation thereto shall be paid by the
Company.

Costs of
Act.

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